

IN THE DEBTS RECOVERY TRIBUNAL-II, MUMBAI

(Under the Recovery of Debts and Bankruptcy Act, 1993)

O.A. No. 122 of 2022 (Diary No. 1624/2019)

Bank of India, SARM Branch, Mumbai

...Applicant

— versus —

Babulal Ganeshmal Bohra & Others

...Respondents

SECOND SUPPLEMENTARY AFFIDAVIT

In support of Interlocutory Application No. 884 of 2026

filed by the Intervener / Decree Holder

Filed by: Neeraj Singh Mohnia, Erstwhile Sole Proprietor, M/s Adarsh Impex Enterprise (Decree Holder in Civil Summary Suit No. **1352 of 2017**, City Civil Court, Mumbai — decree dated 05.01.2021), Intervener in IA 884/2026, appearing as Party-in-Person.

A-503, Marathon Eminence, Dadasaheb Gaikwad Marg, Mulund West, Mumbai – 400 080

Mobile: 9323722122 | Email: adarshimpexent@gmail.com

AFFIDAVIT

I, Neeraj Singh Mohnia, aged about 58 years, Indian National, Erstwhile Sole Proprietor of M/s Adarsh Impex Enterprise, resident of A-503, Marathon Eminence, Dadasaheb Gaikwad Marg, Mulund West, Mumbai – 400 080, do hereby solemnly affirm and state on oath as follows:

PART I — BACKGROUND AND STATUS OF PROCEEDINGS

1. The Intervener

That I am the Decree Holder in Civil Summary Suit No. **1352 of 2017** decided by the City Civil Court, Mumbai on 05.01.2021 (decree for Rs. 60,26,730/- at 18% p.a. from date of suit till realisation), and the Intervener in Interlocutory Application No. 884 of 2026 filed in OA 122/2022. I am fully conversant with the facts and am competent to swear this affidavit.

2. Related proceedings before this Tribunal

That two further OAs concerning the same debtor network are pending before this Hon'ble Tribunal:

1. OA No. 123 of 2022 — Bank of India vs. Ravi Babulal Bohra & Ors. — son of Respondent No. 1 herein — Cash Credit Rs. 6 crore against Hill Point Holiday Resort, Vashi Tare Devrukh, Sangameshwar, Ratnagiri — same branch, same date of sanction (24.03.2017) as OA 122/2022.
2. OA No. 230 of 2024 — ICICI Bank Ltd. vs. Babulal Ganeshmalji Bohra & Ors. — same primary Respondent — next date 26.11.2026 CAOD Ex Parte.

3. Parallel proceedings

That this Intervener's complaint has been transferred by EOW Mumbai to CBI Mumbai vide **Reference No. 993/VPNI/AJUVI/Unit 7(Shares)/2026 dated 08.05.2026**, naming Shri Babulal Ganeshmal Bohra,

Shri Ravi Babulal Bohra, and unnamed officers of Bank of India, Nagpada Branch, as named persons in the complaint transferred for investigation. (Exhibit L-1 — annexed hereto — new exhibit.)

That an Execution Petition (EXE S/9/2026) is also pending before the Civil Court, Vadodara, arising from the same decree.

That ICICI Bank Ltd.'s certified copy of OA 230/2024 confirms **an entirely unsecured personal** loan of Rs. 29,50,000 sanctioned **to** Babulal Ganeshmalji Bohra in December 2016 — **five** months **after** Bank of India **had already** sanctioned a home loan of Rs.1.7 crore to the same borrower in August 2016, and three months before Bank of India sanctioned Rs. 5 crore **to** Rashmi Steels **from the same** Nagpada Branch in March 2017. **In a** seven-month window **from** August 2016 **to** March 2017, the Bohra family network obtained approximately **Rs. 37.2 crore across two banks** — **all of** which defaulted **within the** same 12–18 month period. This is submitted as a coordinated credit extraction pattern warranting consolidated examination by this Hon'ble Tribunal.

PART II — THE MORTGAGED PROPERTY: LEGAL INCAPACITY TO SUSTAIN A VALID MORTGAGE

That the primary secured property offered to Bank of India — R.S. No. 124, Block 152, Kural Village, Padra Taluka, Vadodara — is incapable of sustaining a valid mortgage on four independent and cumulative grounds, each of which is independently verifiable from official Government records:

Ground A — Government Revenue Land under Section 68 GLRC

That the said land is Government revenue land under Section 68 of the Gujarat Land Revenue Code and is, as a matter of law, incapable of being privately owned or validly mortgaged. The Padra Mamlatdar's revenue records (Property Card No. 2026352962, four Haq Patrak entries, Occupancy Register, and 7/12 Utara — all bearing official digital signatures and QR codes of the Government of Gujarat) confirm this across **37 separate anomalies** documented in the Layperson's Forensic Observation Report, **already on record as Exhibit J-3 in IA 884/2026 dated 26.03.2026 before this Hon'ble Tribunal.**

Ground B — Invalid Mortgagor Entity

That the entity through which the mortgage was purportedly executed — **Shri Maintainance Contract Private Limited (CIN U99999GJ1992PTC017724)** — is a shell company with Rs. 40 paid-up capital, no directors on record, no charges registered, an invalid PIN 000000, and no traceable PAN. It has been struck off. (Exhibit D-1 — already on record in IA 884/2026.)

Ground C — SARFAESI Without Foundation

That Section 13(1) of the SARFAESI Act authorises enforcement 'without intervention of court' — this power presupposes a valid security interest. Where the mortgage is void ab initio, there is no security interest to enforce, and all SARFAESI measures taken by Bank of India on the basis of this void mortgage are **without legal authority.**

Mardia Chemicals Ltd. v. Union of India (2004) 4 SCC 311 — DRT retains jurisdiction to examine foundational validity of security interest even under SARFAESI.

United Bank of India v. Satyawati Tondon (2010) 8 SCC 110.

Ground D — Pre-Sanction Due Diligence Failure

That Bank of India failed to conduct mandatory pre-sanction due diligence — specifically title verification, **CERSAI search**, revenue record verification, MCA check, and independent valuation — as required by RBI's Master Circular on Loans and Advances (RBI/2015-16/98). A mandatory CERSAI search, if conducted, would have immediately revealed the Indian Overseas Bank charge (registered

26.03.2012, Charge ID 200003766496) already registered on the same property. Whether such a search was in fact conducted, and what it revealed, is a matter compellable from the credit appraisal file sought under Part XI of this affidavit.

PART III — SHRI MAINTAINANCE CONTRACT PVT. LTD.: SIX GROUNDS OF VOIDNESS

That the voidness of the mortgage executed through Shri Maintenance Contract Private Limited rests on six independent grounds (Exhibit D-1 — already on record in IA 884/2026 dated 26.03.2026), any one of which is sufficient to invalidate the mortgage:

1. — not the Rs. 1 lakh minimum required under Section 11 of the Companies Act, 1956. **Rs. 40 paid-up capital**
2. — on the MCA portal — a company without directors cannot execute any legal instrument. **No directors on record**
3. — despite supposedly mortgaging high-value land, the company has no charge history on the MCA portal. **No charges registered**
4. — in MCA master data — not a valid Indian PIN code, indicating fictitious registration data. **Invalid PIN 000000**
5. — a company that conducted real business must hold a PAN. Absence suggests it was never genuinely operational. **No traceable PAN**
6. — the Registrar of Companies has struck this company off the register. **Struck off status**

PART IV — FORM CHG-4: ANOMALIES IN THE PURPORTED SATISFACTION OF IOB CHARGE

That a Form CHG-4 was filed by Light and Glaze Profile Pvt. Ltd. (CIN U27203GJ2011PTC065583) purporting to record satisfaction of the Indian Overseas Bank charge (Exhibit E-2 — already on record in IA 884/2026 dated 26.03.2026). The certified copy of this CHG-4 is annexed hereto as **Exhibit N-1 (new exhibit)**, and carries the following independently verifiable anomalies:

1. The CHG-4 was filed when Light and Glaze Profile Pvt. Ltd. had already been struck off — a with the Registrar of Companies. **struck-off company cannot file statutory forms**
2. The CHG-4 bears the signature of a director with DIN 02080079 (Srinivas Saikumar Anne). The MCA record for Light and Glaze does not evidence any Form DIR-12 or cessation record for Mr. Anne. The — for a company subsequently struck off — is the anomaly warranting production of the company's complete director-history record. **absence of any cessation record**
3. The professional certifier on the CHG-4 is CA Mandowara Raj Kumar (). An independent ICAI search has confirmed this registration number. (Exhibit N-3 — new exhibit.) **ICAI FCA 046468**
4. A direct conflict exists between two statutory registries: the MCA Index of Charges records the IOB charge (Charge ID 10350710, SRN C68405455) as satisfied on 19.10.2015, while CERSAI continues to record the identical charge as NOT SATISFIED as of 20.05.2026 — more than thirteen years after registration. (Exhibit O-1 — new exhibit.) **MCA vs. CERSAI: two official registries contradicting each other**

PART V — CERSAI: CONCENTRATED EXPOSURE AND CONTINUING ANOMALIES

That a search of the CERSAI portal reveals the following (all CERSAI records already on record in IA 884/2026 as Exhibits E-1 to E-5; fresh download of Exhibit E-2 dated 20.05.2026 filed hereto as Exhibit O-1):

1. CERSAI Asset ID 200014613560 — Bank of India, Nagpada Branch — Rs. 29.5 crore ceiling (principal + interest + charges) — Status: . (Exhibit E-1 — on record.) **NOT SATISFIED**
2. CERSAI Asset ID 200003766496 — Indian Overseas Bank, Dandia Bazaar — Rs. 5.78 crore — Status: — thirteen years after registration, notwithstanding the CHG-4. (Exhibit E-2 — on record; Exhibit O-1 — fresh download dated 20.05.2026, new exhibit.) **NOT SATISFIED**
3. CERSAI Asset ID 200017457156 — Bank of India — Rs. 7.5 crore — Status: NOT SATISFIED. Enhancement processed within on 14.11.2017 per CBS Statement Exhibit U already on record. (Exhibit E-3 — on record.) **16 minutes**
4. CERSAI Asset ID 200015123404 — Bank of India, Rashmi International (Ravi Babulal Bohra) — Rs. 7 crore — Status: . Post-default enhancement. (Exhibit E-4 — on record.) **NOT SATISFIED**
5. CERSAI Asset ID 200013767289 — — Ravi Bohra account. (Exhibit E-5 — on record.) **NPA/ARC transfer**

PART VI — RASHMI METASTEEL, COSMOS ALUMINIUM AND TAMILNAD MERCANTILE BANK: THE CONNECTED ENTITY PATTERN

A. Rashmi Metasteel Private Limited — Balance Sheet Confirms Shell Nature

That the Form 23AC of Rashmi Metasteel Private Limited (CIN U27310MH2011PTC213595) for the financial year 2012-13, filed with and certified by the Registrar of Companies, Mumbai (**Exhibit M-3 — new exhibit**), conclusively establishes that this entity:

1. Held , zero intangible assets, and zero capital work-in-progress — a company purportedly in the steel manufacturing business had no machinery, no factory, no equipment of any kind. **zero tangible fixed assets**
2. Earned — consistent with having no production assets and no real commercial activity. **zero operating income**
3. Sourced its entire long-term borrowings of Rs. 23,861,026 exclusively from related parties — with zero borrowings from banks, financial institutions, or any independent third party. Every single rupee of funding came from within the same family/group network. **100% related-party funding**
4. Carried accumulated losses (negative reserves) of Rs. 22,75,814 against a paid-up capital of Rs. 10,00,000 — rendering it at the time of this filing. **technically insolvent**

That Shri Ravi Babulal Bohra (DIN 03373639) signed this balance sheet as Director on 05.09.2013 — the same person who, as proprietor of Rashmi International, obtained a Cash Credit facility of Rs. 6 crore from Bank of India, Nagpada Branch on 24.03.2017, approximately three and a half years after this balance sheet confirmed the insolvent and non-operational condition of his connected entity.

That the Intervener respectfully submits that a basic due diligence check on connected entities of the borrower — a step mandated by the RBI Master Circular on Loans and Advances — would have revealed this balance sheet to Bank of India before sanction. **The failure to conduct this check, or the decision to proceed despite it, is a matter that warrants examination.**

B. The Anne Nexus — Cosmos Aluminium and Tamilnad Mercantile Bank

That Srinivas Saikumar Anne (DIN 02080079) — who appears as signing Director on the CHG-4 (Exhibit N-1) — has been independently confirmed as director/managing director of Cosmos Aluminium Private Limited (CIN U10102AP2006PTC049489) during an overlapping period.

That Tamilnad Mercantile Bank registered a charge (**Charge ID 10184567, dated 05.03.2014**) against Cosmos Aluminium for Rs. 4,88,00,000. EPFO records for Cosmos Aluminium's Katapadu operations confirm **zero employees for the 16 months preceding this charge date**. Only Rs. 2,58,00,000 worth of instruments have been located, leaving an unexplained gap of approximately Rs. 2.3 crore.

That these facts are submitted as leads for investigation. The documents necessary to establish or disprove this nexus are in the custody of Tamilnad Mercantile Bank and the Registrar of Companies, and are sought through the production summons prayer in Part XI below.

PART VII — VADODARA EXECUTION PROCEEDINGS AND BAILIFF OBSERVATIONS

That an Execution Petition (EXE S/9/2026) arising from the same decree is pending before the Civil Court, Vadodara. The Intervener's independent site visit to the Padra location revealed that the property associated with the Padra address had been disposed of through a **Bank e-auction** — a SARFAESI proceeding on property the Intervener contends was never validly mortgaged.

That certified copies of the Vadodara court proceedings, including the bailiff's report and orders on the applications filed therein, are awaited and shall be produced before this Hon'ble Tribunal upon receipt, and as and when demanded.

PART VIII — BANK OF INDIA'S CONDUCT: THE 16-MINUTE ENHANCEMENT AND POST-DEFAULT PATTERN

That the CBS Statement of Bank of India (already on record as Exhibit U in IA 884/2026 dated 26.03.2026) independently reveals:

1. On 14.11.2017, Cash Credit enhanced from Rs. 5 crore to Rs. 7.5 crore. The CBS Statement shows this was processed within — no commercially prudent credit enhancement of Rs. 2.5 crore can be completed in 16 minutes. **16 minutes**
2. A further enhancement of Rs. 1 crore was processed in January 2019 — after the account had already turned NPA. Enhancing a credit limit post-default is a regulatory violation under RBI Master Circular on Loans and Advances. **post-NPA enhancement**
3. Standing instruction entries 'StCon/RS PADRA TO RI CC SOL-ID 25190 VADODRA' in the CBS Statement confirm fund transfers between Rashmi Steels (Babulal) and Rashmi International (Ravi) accounts — confirming fund commingling and group exposure not aggregated under RBI Large Exposure Framework (RBI/2016-17/286). The CBS Statement further confirms a credit entry dated 31.03.2018 described as 'TR FROM RASHMI STEELS — Rs. 7,75,000.00' into the home loan account (Account No. 005575110000081) on the last day before NPA declaration — constituting fund transfer from the commercial Cash Credit account to the personal home loan account, in direct violation of Clause 11 of the Multipurpose Agreement for Loan signed by Babulal Bohra, which explicitly prohibits 'Non-Diversion/Siphoning Off of Funds.' **fund commingling — Rs. 7,75,000 siphoned on eve of NPA**
4. Both OA 122/2022 (BOI vs. Babulal, Padra collateral) and OA 123/2022 (BOI vs. Ravi, Ratnagiri collateral) were sanctioned from Nagpada Branch on the — with aggregate connected-party exposure exceeding Rs. 44 crore without required aggregation under the Large Exposure Framework. **same date — 24.03.2017**

5. That page 3 of the Multipurpose Agreement for Loan (Form L-516) executed in August 2016 — BOI's own certified court document filed in OA 122/2022 — contains a handwritten self-declaration by Babulal Ganeshmal Bohra disclosing the following existing credit facilities at the time of applying for the home loan: (i) Rashmi Steels — BOI Nagpada Branch — Cash Credit Rs. 1,500 lacs and Term Loan Rs. 600 lacs; (ii) Rashmi Tubes (Proprietor: Sangeeta Bohra) — Cash Credit Rs. 500 lacs — a fourth connected entity in the network now court-confirmed; (iii) Ravi Bohra — Term Loan Rs. 7 lacs; (iv) Babulal Bohra — Term Loans Rs. 2.57 lacs and Rs. 9 lacs. Total self-declared existing exposure: approximately Rs. 26.18 crore from BOI Nagpada Branch alone at the time of applying for the additional home loan. That the violation of the Large Exposure Framework in this case is distinguished from an inadvertent oversight by one critical fact: the borrower's own handwritten self-declaration placed the full Rs. 26.18 crore connected-party exposure in writing before the sanctioning officer. That the sanctioning officer — whose identity will be confirmed from the credit committee minutes compellable under Part XI of this affidavit — proceeded with the sanction despite this written disclosure, without applying the LEF aggregation requirement, constituting not an oversight but a knowing regulatory violation attracting Section 13 of the Prevention of Corruption Act, 1988 and Section 409 of the Indian Penal Code. **BOI had full written knowledge — Rs. 26.18 crore self-declared — violation not inadvertent**

PART IX — OA 123/2022: THE RATNAGIRI COLLATERAL AND THE IDENTICAL PATTERN

That certified copies of the initial pages of OA 123/2022 were received on 14.08.2026 and are annexed hereto as **Exhibits R-1 and R-2 (new exhibits)**. These reveal:

1. Sanction Letter dated 24.03.2017 (Exhibit A in OA 123/2022) confirms Cash Credit of Rs. 6 crore to Rashmi International (proprietor: Ravi Babulal Bohra), Nagpada Branch — as OA 122/2022. (Exhibit R-1.) **same branch and same date**
2. Collateral is equitable mortgage of , Village Vashi Tare Devrukh, Sangameshwar, Ratnagiri (Survey Nos. 138/139), recorded in CERSAI Asset ID 200015123404. (Exhibit R-1.) **Hill Point Holiday Resort**
3. Independent Mahabhulekh 7/12 search for Survey 138/139, Village Devrukh, Taluka Sangameshwar, District Ratnagiri reveals that (registered landowner) in any sub-plot examined — identical to the Padra pattern. (Exhibit T-1 — new exhibit.) **neither Ravi Babulal Bohra nor Rashmi International appears as Khatedar**
4. The Vakalatnama of OA 123/2022 (Exhibit R-2) confirms Nahush Shah Legal, Office No. 54, 5th Floor, Bajaj Bhavan, Nariman Point, Mumbai 400021, as advocate on record — same firm acting for Bank of India in both OA 122/2022 and OA 123/2022. **same firm acting for Bank of India in both OAs**

PART X — URGENCY: SECTION 19(26), THE CBI INVESTIGATION, AND PREJUDICE TO INTERVENER

That OA 122/2022 has been pending for approximately **78 months** since filing in January 2019. Section 19(26) of the Recovery of Debts and Bankruptcy Act, 1993 mandates disposal within six months. The pendency represents a factor of **13 times the statutory mandate**. Despite 78 months of proceedings, the Respondents have never appeared, were never personally served (service was effected only by paper publication in June 2023), and the DRT portal shows no advocate on record for any Respondent throughout.

That this Intervener holds a decree for Rs. 60,26,730/- at 18% per annum from the date of suit (Summary Suit No. 1352/2017, City Civil Court, Mumbai, decree dated 05.01.2021). As at 25.08.2026,

the total decree amount including accrued interest stands at approximately Rs. 1,55,70,098/- (Rupees One Crore Fifty-Five Lakhs Seventy Thousand Ninety-Eight only), accruing at the rate of Rs. 2,972/- per day. This decree remains wholly unsatisfied.

Prima Facie Case — Established from Official Government Records

That the prima facie case is established not by allegations but by four official government records from four independent portals:

1. The Government of Gujarat's Property Card No. 2026352962 (Exhibit C-1 — on record) — bearing the Government's own official digital signature — shows the owner of R.S. No. 124, Padra as Shri Maintainance Contract Pvt. Ltd. — not Rashmi Steels. **Government of Gujarat's own record: owner is not Rashmi Steels**
2. The MCA portal shows Shri Maintainance Contract Pvt. Ltd. (CIN U99999GJ1992PTC017724) to be struck off — assets vested in the Government of India — Rs. 40 paid-up capital, zero directors, invalid PIN 000000. (Exhibit D-1 — on record.) **Struck-off shell with Rs. 40 paid-up capital cannot mortgage**
3. The CERSAI portal (fresh download 20.05.2026, Exhibit O-1 — new) shows Asset ID 200003766496 — the Indian Overseas Bank charge on the same Padra property — as NOT SATISFIED — a prior undisclosed charge subsisting since 26.03.2012. **Prior IOB charge NOT SATISFIED — 13+ years**
4. The Gujarat Land Revenue Code Section 68 classification on the Property Card confirms Government revenue land — unmortgageable without Collector's permission never obtained. **Government revenue land — cannot be validly mortgaged**

Balance of Convenience

That the balance of convenience strongly favours examination of foundational validity before CAOD issues. **If CAOD is stayed and the security is subsequently found valid — no harm is caused — CAOD can issue thereafter.** If CAOD issues without examination — and the security is subsequently found void — the harm is irreversible. CAOD once issued, Recovery Certificate once drawn, enforcement once begun cannot be undone. The inconvenience of a short examination entirely favours the grant of stay.

Irreparable Harm

That once CAOD issues and enforcement begins, the Intervener's decree of Rs. 1,55,70,098/- (as at 25.08.2026) will become irrecoverable. The Intervener has no claim against Bank of India. The only source of recovery is the Judgment Debtor's assets. Once consumed by enforcement on void security, the Intervener's decree becomes **a paper decree — permanently and irrecoverably**. There is no damages remedy, no restitution, no mechanism to reverse completed SARFAESI enforcement.

CBI Investigation

That a CBI investigation is actively underway (Ref. 993/VPNI/AJUVI/Unit 7(Shares)/2026 dated 08.05.2026, Exhibit L-1 — new) naming Babulal Ganeshmal Bohra, Ravi Babulal Bohra, and unnamed BOI Nagpada Branch officers, as named persons in the complaint transferred for investigation. Proceeding to CAOD without awaiting this investigation risks creating a fait accompli prejudicing the investigation and causing irreversible miscarriage of justice.

Structural Point — Only the Intervener Has Placed This Evidence on Record

That Bank of India's institutional interest is in recovering its outstanding dues. **Bank of India's advocate's mandate is to recover — not to expose the bank's own due diligence failures.** There is therefore a structural reason why the evidence placed before this Tribunal by the Intervener — the Government of Gujarat's revenue records, the CERSAI double registration, the MCA strike-off confirmations, the CHG-4 anomalies, and the self-declaration of Rs. 26.18 crore exposure — has not been placed on record by Bank of India's advocate in 78 months of proceedings. **The Intervener is**

the only party before this Tribunal with both the evidence and the incentive to place the full picture on record.

Illustrative Diagrams Filed Herewith

That to assist this Hon'ble Tribunal in comprehending the entity network, the sequence of transactions, and the regulatory violations, six illustrative diagrams (Acts 1–6) are annexed as Illustrative Exhibits. These are visual aids derived entirely from official government records and certified court documents already on record — they do not constitute primary evidence:

1. **Act 1** — Shell Network Setup (2011–2012): Entity relationships, self-declaration of Rs. 26.18 Cr exposure in BOI's own loan agreement. **Illustrative Exhibit — Act 1**
2. **Act 2** — Void Mortgage and False Satisfaction (2012–2017): IOB charge, CHG-4 anomaly, MCA vs CERSAI contradiction, BOI lending on encumbered land. **Illustrative Exhibit — Act 2**
3. **Act 3** — Coordinated Credit Extraction (Aug 2016–Mar 2017): Rs. 37.2 crore across two banks in 7 months; same branch, same date. **Illustrative Exhibit — Act 3**
4. **Act 4** — Coordinated Default and Disappearance (2018): All four accounts NPA within 15 days; BOI serving summons on its own SARFAESI property. **Illustrative Exhibit — Act 4**
5. **Act 5** — Institutional Silence (2022–2026): RTI stonewalling, contradictory responses, Rs. 76.87 crore documented fraud quantum. **Illustrative Exhibit — Act 5**
6. **Act 6** — The Reckoning (25.08.2026): DRT-II filing, CBI submission, RBI complaint — simultaneous. **Illustrative Exhibit — Act 6**

Mardia Chemicals Ltd. v. Union of India (2004) 4 SCC 311 — **DRT retains** jurisdiction **to** examine foundational validity **of** security.

ITC Ltd. v. Blue Coast Hotels Ltd. (2018) 15 SCC 99 — **Intervener's rights** in DRT proceedings.

Transcore v. Union of India (2008) 1 SCC 125 — **Simultaneous remedies** in debt recovery.

United Bank of India v. Satyawati Tondon (2010) 8 SCC 110 — **SARFAESI** proceedings **MUST BE based on** valid security.

PART XI — PRAYER FOR PRODUCTION SUMMONS

That the Intervener most respectfully **prays** for production summons **to the** following parties **for the** following documents, essential **for** complete adjudication of OA 122/2022:

1. **Bank of India**, Nagpada Branch: Complete for Rashmi Steels Cash Credit — original title documents deposited, CERSAI search report, independent valuation report, sanction committee minutes — all sanctions and enhancements 2016–2019. **credit appraisal file**
2. **Bank of India**, Nagpada Branch: CBS loan account statement for Rashmi International (Ravi Babulal Bohra) — all entries, standing instructions, fund transfers to/from Rashmi Steels account — 2017 to NPA declaration. **Rashmi International CBS statement**
3. **Bank of India**, Nagpada Branch: Identity and service record of Shri (affiant in both OA 122/2022 and OA 123/2022) — designation on 24.03.2017, authority to approve enhancements, credit committee composition. **Surendra Waman Pagare**
4. **Indian Overseas Bank**, Dandia Bazaar Branch: Complete charge documents for Charge ID 200003766496 — original security documents, NOC if any, for comparison with the CHG-4 filed by Light and Glaze. **actual discharge document**

5. **Registrar of Companies, Ahmedabad**: Complete director history of Light and Glaze Profile Pvt. Ltd. (CIN U27203GJ2011PTC065583) — all DIR-12 filings, specifically any cessation record for DIN 02080079 (Srinivas Saikumar Anne). **DIR-12 filings for DIN 02080079**
6. **Registrar of Companies, Ahmedabad**: Complete filing history of Shri Maintainance Contract Pvt. Ltd. (CIN U99999GJ1992PTC017724) — annual returns, directors, charges, and all RoC correspondence. **Shri Maintainance Contract filing history**
7. **CERSAI**: Complete charge history for Asset IDs 200014613560, 200003766496, 200017457156, 200015123404, and 200013767289 — all modifications, satisfaction filings, and current responsible lender of record. **complete CERSAI charge history**
8. **Sub-Registrar, Padra**: Registration records for any sale, mortgage, or assignment of R.S. No. 124, Kural Village, Padra — 2010 to date. **Sub-Registrar Padra**
9. **Sub-Registrar, Sangameshwar**: Registration records for any mortgage of Survey Nos. 138/139, Village Devrukh, Taluka Sangameshwar — 2015 to date. **Sub-Registrar Sangameshwar**
10. **Tamilnad Mercantile Bank**: Sanction committee minutes, credit appraisal file, and complete charge documents for Charge ID 10184567 (05.03.2014) against Cosmos Aluminium Pvt. Ltd. (CIN U10102AP2006PTC049489) — specifically the basis for the discrepancy between Rs. 4,88,00,000 charged and Rs. 2,58,00,000 in instruments. **Tamilnad Mercantile Bank: Rs. 2.3 crore discrepancy**

PART XII — CONSOLIDATED PRAYER

In view of the foregoing, the Intervener / Decree Holder most respectfully prays that this Hon'ble Tribunal may be pleased to:

1. Stay any further proceedings under the ex parte CAOD order in OA 122/2022 pending examination of the foundational validity of the security interest; **Stay CAOD**
2. Direct thorough examination of the argument set out in Part II before any order of attachment, auction, or realisation; **void mortgage**
3. Issue to the parties and authorities named in Part XI above; **production summons**
4. OA 122/2022, OA 123/2022, and OA 230/2024 for joint and consolidated hearing before the same Presiding Officer; **Tag and list**
5. Take judicial notice of the active (Reference No. 993/VPNI/AJUVI/Unit 7(Shares)/2026 dated 08.05.2026) and consider its pendency before passing any order; **CBI investigation**
6. Direct Bank of India to file a fresh affidavit disclosing: (i) whether pre-sanction CERSAI search was conducted; (ii) whether the 16-minute enhancement was approved by competent authority; (iii) whether the post-NPA enhancement was approved and by whom; **fresh affidavit from Bank of India**
7. Direct that the surplus, if any, from realisation in OA 122/2022 shall be kept in a pending disposal of the Intervener's decree claim; **separate interest-bearing account**
8. Pass such other orders as this Hon'ble Tribunal may deem just and proper in the **interests of justice**

VERIFICATION

I, Neeraj Singh Mohnia, the deponent above-named, do hereby verify that the contents of the above affidavit are true and correct to the best of my knowledge, belief, and information, and that nothing material has been concealed therefrom.

Verified at Mumbai on this _____ day of August 2026.

Deponent

Neeraj Singh Mohnia

Before me:

Notary / Oath Commissioner

EXHIBIT TABLE — SECOND SUPPLEMENTARY AFFIDAVIT

Note: Exhibits marked “On record” were filed with the original IA 884/2026 dated 26.03.2026 and are already before this Hon’ble Tribunal. Exhibits marked “NEW” are filed for the first time with this Second Supplementary Affidavit and are covered by the Section 65B Certificate (Exhibit S-1).

#	Exhibit	Description	Status
1	A-1	Decree — Civil Summary Suit No. 1352/2017 — City Civil Court, Mumbai — 05.01.2021 (suit number corrected from 1351 to 1352)	On record / Corrected
2	B-1	DRT portal — OA 122/2022 — CAOD Ex Parte status screenshot	On record
3	B-2	DRT portal — Respondent details — Mehta Court, Lamington Road address	On record
4	C-1	Property Card No. 2026352962 — Padra Mamlatdar — Govt of Gujarat digital signature — 17.03.2026	On record
5	C-2(a-d)	Haq Patrak — Nodh Nos. 483, 1549, 1507, 1190 — Padra Mamlatdar	On record
6	C-3	Gaon Namuno No. 12 — Occupancy Register — Mamlatdar Seal	On record
7	C-4	7/12 Utara — RV24g — Survey 124 Block 152 — Mamlatdar Seal	On record
8	D-1	MCA Strike Off — Shri Maintenance Contract Pvt. Ltd. (CIN U99999GJ1992PTC017724)	On record
9	E-1	CERSAI 200014613560 — BOI Nagpada — Rashmi Steels — Rs. 29.5 crore ceiling — NOT SATISFIED	On record
10	E-2	CERSAI 200003766496 — IOB Dandia Bazaar — Light & Glaze — Rs. 5.78 crore — NOT SATISFIED	On record
11	E-3	CERSAI 200017457156 — BOI — 16-minute enhancement — Rs. 7.5 crore — NOT SATISFIED	On record
12	E-4	CERSAI 200015123404 — BOI — Rashmi International (Ravi Bohra) — Rs. 7 crore — NOT SATISFIED	On record
13	E-5	CERSAI 200013767289 — Ravi Bohra NPA/ARC transfer — NOT SATISFIED	On record
14	F-1	BOI e-Auction Notice — Free Press Journal — 20.07.2020	On record
15	J-1	Fraud Flowchart — Modus Operandi diagram	On record
16	J-2	CERSAI Summary Table — Rs. 44 crore+ concentration — BOI Nagpada	On record
17	J-3	Layperson’s Forensic Observation Report — 37 anomalies across 19 official Government records	On record
18	J-4	Statement of Pending and Related Proceedings — Updated as of 25.08.2026	Updated
19	L-1	EOW Mumbai → CBI Transfer Letter — Ref. 993/VPNI/AJUVI/Unit 7(Shares)/2026 — 08.05.2026	NEW

#	Exhibit	Description	Status
20	M-2	Form 20B — Rashmi Metasteel Pvt. Ltd. — RoC Mumbai certified copy	<i>On record</i>
21	M-3	Form 23AC — Rashmi Metasteel Pvt. Ltd. — Ravi Bohra as director, zero fixed assets, 100% related-party funding	NEW
22	M-4C	MCA Strike Off — Rashmi Metasteel Pvt. Ltd. — 09.11.2018	<i>On record</i>
23	M-5A	MCA Strike Off — Light and Glaze Profile Pvt. Ltd.	<i>On record</i>
24	N-1	Form CHG-4 — Light and Glaze Profile Pvt. Ltd. — Certified copy — 7 anomalies identified	NEW
25	N-2	CERSAI Asset ID 200028262710 — S.G. Preservatives / Bank of Baroda — Asoj Village — ~700% valuation inflation	NEW
26	N-3	CA Mandowara Raj Kumar — ICAI FCA 046468 — credential confirmation (CHG-4 certifier)	NEW
27	O-1	CERSAI 200003766496 — fresh download 20.05.2026 — IOB charge STILL NOT SATISFIED post-CHG-4	NEW
28	P-1	BOI Nagpada email — 18.05.2026 — institutional refusal + internal referral admission	NEW
29	P-2	Intervener's reply to BOI email — 19.05.2026	NEW
30	Q-1	IOB RTI response — CPIO returned Intervener's own application (legal nullity as response)	NEW
31	R-1	OA 123/2022 — Sanction Letter dated 24.03.2017 — Rashmi International Rs. 6 crore — Ratnagiri collateral — certified copy received 14.08.2026	NEW -
32	R-2	OA 123/2022 — Vakalatnama — Nahush Shah Legal — Office 54, 5th Floor, Bajaj Bhavan, Nariman Point	NEW
33	S-1	Section 65B Certificate — covering all electronically obtained records in this affidavit — filed separately	Filed separately
34	T-1	Mahabhulekh 7/12 Satbara — Survey 138/139, Devrukh, Sangameshwar, Ratnagiri — neither Ravi Bohra nor Rashmi International as Khatedar	NEW

Place: Mumbai

Date: 25.08.2026

Neeraj Singh Mohnia

Intervener / Decree Holder / Party-in-Person

IA 884/2026 in OA 122/2022, DRT-II Mumbai